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Executive Order.

A Determination, Order and Direction Concerning the Transfer, Release and Surrender of Certain Rights in and to Certain Shares of the Capital Stock of C. Walker Jones Inc.

By virtue of the authority vested in the President by an Act of Congress entitled an "Act to Define, Regulate and Punish Trading with the Enemy and for other purposes," approved October 6, 1917, and known as the "Trading with the Enemy Act" and the amendment to such Act in "An Act making Appropriations to supply Urgent Deficiencies in Appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of War Expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making Appropriations to supply Deficiencies in Appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of War Expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained.

Whereas, evidence has been presented that C. Walker Jones may be indebted to Ernst Beckert, Ltd., G.m.b.H., a partnership of Chemnitz, Germany, and/or the individual members of such partnership, and/or Beckert Needle & Supply Company, a Pennsylvania Corporation, the total issued and outstanding stock of which was on the 6th day of October, 1917, and for more than a year prior thereto had been owned by said Ernst Beckert, Ltd., G.m.b.H., and/or the individual members of such partnership, and

Whereas, the amount of such indebtedness can not be definitely ascertained until a full and final accounting can be had between the aforementioned parties, and

Whereas, said Ernst Beckert, Ltd., G.m.b.H., a partnership of Chemnitz, Germany, and the individual members of such partnership and each of them have heretofore been determined by the Alien Property Custodian to be enemies not holding a license granted by the President, and

Whereas, pursuant to the request of said Alien Property Custodian said C. Walker Jones and said C. Walker Jones, Inc., heretofore filed certain reports with the Alien Property Custodian as from the records of his office will more fully appear, but under protest and subject to certain reservations stated in said reports, and

Whereas, pursuant to the demands of the Alien Property Custodian, but under protest, and subject to the reservations stated in said reports two hundred and fifty (250) shares of the preferred capital stock and one thousand (1000) shares of the common capital stock of said C. Walker Jones, Inc., were transferred and surrendered to the Alien Property Custodian and are now in the possession and control of the Alien Property Custodian, and

Whereas, pursuant to the demands of the Alien Property Custodian the entire outstanding capital stock of Beckert Needle & Supply Company was transferred and surrendered to the Alien Property Custodian and is now in the possession or control of the Alien Poperty Custodian, and

Whereas, the indebtedness due from said C. Walker Jones to said Beckert Needle & Supply Company has been transferred and assigned to said Alien Property Custodian as sole stockholder in said Beckert Needle & Supply Company by the declaration of a dividend of the same to said Alien Property Custodian as sole stockholder thereof,

I HEREBY in the public interest make the following determination, direction and order:

The Alien Property Custodian may and he is hereby authorized and directed to transfer, dispose of, release, surrender and quit-claim to said C. Walker Jones, all the right, title and interest which the Alien Property Custodian and Ernst Beckert, Ltd., G.m.b.H., a co-partnership of Chemnitz, Germany, and/or the individual members of said co-partnership, or either of them have acquired or may acquire by reason of said demands for said stock of said C. Walker Jones, Inc., and the transfer and surrender of the same to the Alien Property Custodian upon such terms and conditions as the Alien Property Custodian, or his duly authorized agent, may deem proper, including, but without limiting, the generality of the foregoing, such terms and conditions as will secure the payment by said C. Walker Jones to the Alien Property Custodian or his successor in office of any indebtedness now owing, or hereafter on such accounting determined to be then owing, by said C. Walker Jones to said Ernst Beckert, Ltd., G.m.b.H., a co-partnership of Chemnitz, Germany, and/or the individual members of said co-partnership, and/or Beckert Needle & Supply Company, or any of them, and including the power to secure the aforesaid indebtedness of said above-named persons and corporations, if any, by causing the said stock or any part thereof so released to said persons as aforesaid to be held as security for the payment of said indebtedness, if any, under such form of trust agreement or otherwise, as may seem proper to the Alien Property Custodian, or his duly authorized agent; and including the power to make such arrangements as the Alien Property Custodian, or his successor in office, deems expedient to prevent such shares of the capital stock of said C. Walker Jones, Inc., or any part thereof, from passing into Geman or Austrian hands, or into German or Austrian control, for such period as may seem proper to the Alien Property Custodian, or his successor in office.

My reasons in the public interest for the foregoing determination, direction, order, rule and requirements are:

(a) The evidence presented shows that the interest of the Alien Property Custodian in said stock of said C. Walker Jones, Inc., may be merely the right to hold same as collateral security for the payment of such indebtedness, if any, of said C. Walker Jones to said Ernst Beckert, Ltd., G.m.b.H., a co-partnership of Chemnitz, Germany, and/or the individual members of said co-partnership, and/or the Beckert Needle & Supply Company.

(b) That said C. Walker Jones has offered to pay or cause to be paid after accounting whatever sum, if any, is found to be due from him to said Ernst Beckert, Ltd., G.m.b.H., a co-partnership of Chemnitz, Germany, and/or the individual members of said co-partnership, and/or the Beckert Needle & Supply Company, and has offered to secure the payment of the same.

(c) The most effective method whereby the indebtedness, if any, of C. Walker Jones to said Ernst Beckert, Ltd., G.m.b.H., a co-partnership of Chemnitz, Germany, and/or the individual members of said co-partnership, and/or the Beckert Needle & Supply Company, insofar as the same can now be determined, can be speedily and safely liquidated is by the transfer, surrender and release of said stock in said C. Walker Jones, Inc., and the right, title and interest therein of said Ernst Beckert, Ltd., G.m.b.H., a co-partnership of Chemnitz, Germany, and/or the individual members of said co-partnership, and of the Alien Property Custodian, said C. Walker Jones thereupon agreeing to pay, or cause to be paid, said indebtedness, if any, and secure the payment of the same.

WOODROW WILSON

THE WHITE HOUSE,
13 February, 1920.

[No. 3229.]